

question where before that date the appointment of an arbitration, valuation, or other tribunal to determine the question has been completed, or a jury has been empanelled for the purpose.

(2) For the purposes of this Act, the expression "land" includes water and any interests in land or water and any easement or right in, to, or over land or water, and "public authority" means any body of persons, not trading for profit, authorised by or under any Act to carry on a railway, canal, dock, water or other public undertaking.

CHAPTER 58.

An Act for establishing a Forestry Commission for the United Kingdom, and promoting afforestation and the production and supply of timber therein, and for purposes in connexion therewith. [19th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Establishment
of Forestry
Commission.

1.—(1) For the purposes of this Act, it shall be lawful for His Majesty by warrant under the sign manual to appoint eight commissioners, to be styled the Forestry Commissioners, of whom one, to be appointed by His Majesty, shall be chairman, and of whom not less than two shall have special knowledge and experience of forestry in Scotland, and one at least shall be a person having scientific attainments and a technical knowledge of forestry.

(2) There shall be paid to not more than three of the Forestry Commissioners, in this Act referred to as "the Commissioners," such salaries in each year (not exceeding in the aggregate four thousand five hundred pounds) as the Treasury may direct.

(3) Subject to the provisions of this section, the term of office of a Commissioner shall be five years.

(4) On a casual vacancy occurring owing to the death, resignation, or incapacity of a Commissioner, the person appointed by His Majesty to fill the vacancy shall continue in office until the date on which the Commissioner in whose place he was appointed would have ceased to hold office.

(5) A person who has vacated office as a Commissioner shall be eligible for re-appointment.

(6) One of the unpaid Commissioners shall be a member of the Commons House of Parliament.

Proceedings,
staff, and seal
of Commis-
sioners.

2.—(1) The Commissioners may act by three of their number and notwithstanding a vacancy in their number, and may regulate their own procedure.

(2) The Commissioners may, subject to the approval of the Treasury as to number, appoint and employ such officers and servants for the purposes of this Act as they think necessary, and may remove any officer or servant so appointed or employed, and there shall be paid to such officers and servants such salary or remuneration as the Commissioners may, with the consent of the Treasury, determine.

(3) The Commissioners may sue and be sued, and may for all purposes be described by the name of "the Forestry Commissioners," and shall have an official seal which shall be officially and judicially noticed, and the seal shall be authenticated by any Commissioner or the secretary to the Commissioners, or some person authorised by the Commissioners to act on behalf of the secretary.

(4) Every document purporting to be an order or other instrument issued by the Commissioners and to be sealed with the seal of the Commissioners authenticated in manner provided by this section, or to be signed by the secretary to the Commissioners or any person authorised by the Commissioners to act on behalf of the secretary, shall be received in evidence and be deemed to be such order or instrument without further proof, unless the contrary is shown.

(5) The Documentary Evidence Act, 1868, as amended by the Documentary Evidence Act, 1882, shall apply to the Commissioners as though the Commissioners were included in the first column of the Schedule to the first-mentioned Act, and the chairman or any other Commissioner or the secretary, or any person authorised to act on behalf of the secretary, were mentioned in the second column of that schedule, and as if the regulations referred to in those Acts included any document issued by the Commissioners.

31 & 32 Vict.
c. 37.
45 & 46 Vict.
c. 9.

3.—(1) The Commissioners shall be charged with the general duty of promoting the interests of forestry, the development of afforestation, and the production and supply of timber, in the United Kingdom, and shall exercise and perform any powers and duties which are or may be conferred or imposed on, or transferred to, them under the provisions of this Act.

Powers and
duties of Com-
missioners.

(2) There shall be transferred to the Commissioners the powers and duties of the Board of Agriculture and Fisheries, the Board of Agriculture for Scotland, and the Department of Agriculture and Technical Instruction for Ireland in relation to forestry, and also the powers of those Departments under the Destructive Insects and Pests Acts, 1877 and 1907, so far as those powers relate to insects or pests destructive only to forest trees and timber, but, so far as they relate to other insects or pests destructive or injurious alike to fruit trees or farm crops and to forest trees and timber, the Commissioners shall exercise such powers in consultation with the said Departments :

40 & 41 Vict.
c. 68.
7 Edw. 7.
c. 4.

Provided that the Departments from whom the powers and duties aforesaid are transferred to the Commissioners shall, if arrangements are made for the purpose, continue to exercise and perform on behalf of the Commissioners such of the transferred powers and duties as may, from time to time, be agreed between the Commissioners and the Department concerned.

(3) Subject to any directions which may be given by the Treasury, the Commissioners shall have power to do any of the following things :—

- (a) Purchase or take on lease and hold any land suitable for afforestation or required for purposes in connexion with afforestation or with the management of any woods or forests, and manage, plant, and otherwise utilize any land acquired, and erect such buildings or execute such other works thereon as they think necessary :
- (b) Sell or let any land which in their opinion is not needed or has proved unsuitable for the purpose for which it was acquired, or exchange any such land for other land more suitable for that purpose, and pay or receive money for equality of exchange :
- (c) Purchase or otherwise acquire standing timber, and sell or otherwise dispose of any timber belonging to them, or, subject to such terms as may be mutually agreed, to a private owner, and generally promote the supply, sale, utilisation, and conversion of timber :
- (d) Make advances by way of grant or by way of loan, or partly in one way and partly in the other, and upon such terms and subject to such conditions as they think fit, to persons (including local authorities) in respect of the afforestation (including the re-planting) of land belonging to those persons :
- (e) Undertake the management or supervision, upon such terms and subject to such conditions as may be agreed upon, or give assistance or advice in relation to the planting or management of any woods or forests belonging to any persons, including woods and forests under the management of the Commissioners of Woods or under the control of any Government Department, or belonging to any local authority :
- (f) Establish and carry on or aid in the establishment and carrying on of woodland industries :
- (g) Undertake the collection, preparation, publication and distribution of statistics relating to forestry, and promote and develop instruction and training in forestry by establishing or aiding schools or other educational institutions or in such other manner as they think fit :
- (h) Make or aid in making such inquiries, experiments and research, and collect or aid in collecting such

information, as they may think important for the purpose of promoting forestry and the teaching of forestry, and publish or otherwise take steps to make known the results of such inquiries, experiments or research and to disseminate such information :

- (i) Make or aid in making such inquiries as they think necessary for the purpose of securing an adequate supply of timber in the United Kingdom and promoting the production of timber in His Majesty's dominions :

Provided that any advance by way of a grant under this section shall be subject to the condition that any profits resulting from the operations in respect of which the grant was made shall, after allowing for a return to the owner of four per cent. compound interest on the cost incurred by him (exclusive of the amount of the grant), be charged with the repayment to the forestry fund of the amount of the grant together with compound interest at four per cent.

Any question arising between the Commissioners and the owner with respect to the amount of any repayment under this proviso shall, in default of agreement, be decided by a person nominated by the President of the Surveyors' Institution, and, for the purposes of this proviso, the expression "owner" means the person for the time being entitled to the profits on the operations in respect of which the grant was made : Provided also that, before acquiring any land under this Act and before selling or otherwise disposing of any land so acquired, but not required by them for the purposes of this Act, the Commissioners shall consult the appropriate agricultural department, and, in the case of land proposed to be sold or disposed of, shall give that department an opportunity of acquiring the same.

The appropriate agricultural department shall be in England and Wales the Board of Agriculture and Fisheries, in Scotland the Board of Agriculture for Scotland, and in Ireland the Department of Agriculture and Technical Instruction for Ireland.

- (4) An advance shall not after the commencement of this Act be made under subsection (1) of section one of the Development ^{9 Edw. 7.} and Road Improvement Funds Act, 1909, for the purposes of ^{c. 47.} forestry, unless before that date the Development Commissioners have made and the Treasury have approved a recommendation for the advance.

- (5) It shall be lawful for any of the persons under a disability referred to in section seven of the Lands Clauses ^{8 & 9 Vict.} (Consolidation) Act, 1845, or of the Lands Clauses (Consolidation) ^{c. 18.} (Scotland) Act, 1845, to enter into agreements with the Com- ^{8 & 9 Vict.} missioners for the purposes of this section in like manner in all ^{c. 19.} respects as they are entitled to enter into agreements for the purposes of those sections.

(6) In this section the expression "timber" includes all forest products.

Prevention
of damage by
rabbits and
vermin.

4.—(1) Where the Commissioners are satisfied that trees or tree plants are being or are likely to be damaged by rabbits, hares or vermin owing to the failure of an occupier of land to destroy sufficiently the rabbits, hares or vermin on the land in his occupation, or otherwise taking steps for the prevention of such damage, the Commissioners may, after giving to the occupier and owner such opportunity of destroying the rabbits, hares or vermin, or taking such steps as aforesaid, as in the opinion of the Commissioners is reasonable, authorise in writing any competent person to enter on the land and kill and take the rabbits, hares or vermin thereon, and the Commissioners may recover from the occupier summarily, as a civil debt, the net cost incurred by them in connexion with the action so taken.

(2) Any person acting under an authority given by the Commissioners under this section shall, if so required, produce his authority, and, if any person obstructs any person so authorised in the due exercise of his powers or duties under this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(3) The person entitled to kill rabbits, hares or vermin on any common lands shall, for the purpose of this section, be deemed to be the occupier of the land.

(4) For the purpose of this section, the expression "vermin" includes squirrels.

Appointment
of assistant
commissioners
to act for
England,
Scotland, and
Ireland.

5.—(1) For the purpose of exercising in England and Wales, Scotland, and Ireland, respectively, the administrative powers and duties of the Commissioners (other than those relating to statistics, instruction and training, inquiries, experiments and research), and such of their other powers or duties as the Commissioners may determine, the Commissioners shall appoint three persons to be assistant commissioners, of whom one shall be appointed as assistant commissioner for England and Wales, one for Scotland, and one for Ireland.

(2) The salaries of the assistant commissioners shall be such as the Treasury may determine, and the Commissioners may from time to time remove any assistant commissioner and appoint another person to be assistant commissioner in his place.

Consultative
committees
for England,
Scotland,
Ireland, and
Wales.

6.—(1) It shall be lawful for His Majesty, by Order in Council, to establish consultative committees for England, Scotland, Ireland, and Wales, respectively, for giving to the Commissioners in accordance with the provisions of the Order advice and assistance with respect to the exercise and performance by the Commissioners of their powers and duties under this Act.

(2) The constitution of each consultative committee shall be such as may be determined by the Order, so, however, that

the Order shall provide for the inclusion among the members of the committee of—

- (a) a representative, in the case of the English Committee and the Welsh Committee, respectively, of the Board of Agriculture and Fisheries, in the case of the Scottish Committee, of the Board of Agriculture for Scotland, and in the case of the Irish Committee, of the Department of Agriculture and Technical Instruction for Ireland;
- (b) persons having practical experience of matters relating to forestry, woodcraft, and woodland industries;
- (c) representatives of labour;
- (d) representatives of county councils and any other local bodies interested in forestry;
- (e) representatives of societies existing for the promotion of afforestation;
- (f) representatives of woodland owners.

7.—(1) If the Commissioners are unable to acquire by agreement and on reasonable terms any land which they consider it necessary to acquire for the purpose of this Act, they may apply to the Development Commissioners for an order empowering them to acquire the land compulsorily in accordance with the provisions of the Schedule to this Act, and the Development Commissioners, after giving the owner of such land an opportunity of being heard against such compulsory purchase, shall have power to make such order.

Compulsory
acquisition
of land.

(2) No land shall be authorised by an order under this section to be acquired compulsorily which, at the date of the order, forms part of any park, demesne, garden, or pleasure ground, or forms part of the home farm attached to and usually occupied with a mansion house, or is otherwise required for the amenity or convenience of any dwelling-house, or which at that date is the property of any local authority, or has been acquired by any corporation or company for the purposes of a railway, dock, canal, water, or other public undertaking, or is the site of an ancient monument or other object of archaeological interest.

(3) Where an order made by the Development Commissioners under this Act authorises the acquisition of any land forming part of any common, open space, or allotment, the order, so far as it relates to the acquisition of such land, shall be provisional only, and shall not have effect unless and until it is confirmed by Parliament, except where the order provides for giving in exchange for such land other land, not being less in area, certified by the Board of Agriculture and Fisheries to be equally advantageous to the persons, if any, entitled to commonable or other rights, and to the public:

Provided that the foregoing provision shall not apply if the order provides for the granting to the public of reasonable access to the land for air, exercise or recreation, unless the land to be acquired has been dedicated to the public use and

29 & 30 Vict.
c. 122.
39 & 40 Vict.
c. 56.
8 & 9 Vict.
c. 118.
62 & 63 Vict.
c. 30.

enjoyment, or is a metropolitan common within the terms of the Metropolitan Commons Act, 1866, or is a suburban common as defined by the Commons Act, 1876, or is subject to a scheme of regulation made in pursuance of the Metropolitan Commons Acts, 1866 to 1898, or the Inclosure Acts, 1845 to 1882, or the Commons Act, 1899, or to a private or local Act of Parliament.

(4) Where the Commissioners are of opinion that insufficient facilities exist for the haulage of timber from any wood or forest to a road, railway, or waterway, they may make an order that the owner and occupier of any land shall afford the necessary facilities, subject to payment by the person in whose favour the order is made of reasonable rent or wayleave and of compensation for any damage caused by such haulage, and the owner or occupier of such land shall thereupon afford such facilities; and the amount of rent or wayleave and compensation shall, in default of agreement, be assessed by a single arbitrator appointed by the President of the Surveyors' Institution:

Provided that the Commissioners shall not make any order under this subsection until the person proposed to be required to give such facilities as aforesaid has had an opportunity of being heard and any person aggrieved by an order made under this subsection may appeal therefrom to the Development Commissioners in such manner and upon such conditions, if any, as may be prescribed by them, and the Development Commissioners may thereupon revoke or vary any such order.

Establishment
of Forestry
Fund.

8.—(1) The salaries of the Commissioners, and the salaries or remuneration of their officers and servants and all expenses incurred by the Commissioners in the exercise of their powers and the performance of duties under this Act, shall be defrayed out of a fund to be called the Forestry Fund.

(2) There shall be paid into the Forestry Fund—

(a) during the ten years immediately succeeding the first day of April, nineteen hundred and nineteen, the sum of three million five hundred thousand pounds in such annual amounts as Parliament may from time to time determine; and

(b) all sums received by the Commissioners in respect of the sale of any land or timber or otherwise received by the Commissioners in respect of any transactions carried out by them in the exercise of their powers and duties under this Act.

(3) The Commissioners may accept any gift made to them for all or any of the purposes of this Act, and, subject to the terms thereof, may apply it for those purposes in accordance with regulations made by them.

(4) The Commissioners shall cause an account to be prepared and transmitted to the Comptroller and Auditor General for examination, on or before the thirtieth day of September in every year, showing the sums paid into and the sums issued

out of the Forestry Fund in the financial year ending on the thirty-first day of March preceding, and the Comptroller and Auditor General shall certify and report on the same, and such account and report shall be laid before Parliament by the Commissioners on or before the thirty-first day of January in the following year if Parliament be then sitting, and, if Parliament be then not sitting, within one week after Parliament is next assembled.

The Commissioners shall also cause to be laid before both Houses of Parliament an annual report of their proceedings.

(5) Payments out of and into the Forestry Fund, and all other matters relating to the fund and money standing to the credit of the fund, shall be made and regulated in such manner as the Treasury may, by minute to be laid before Parliament, direct.

(6) The Treasury may from time to time invest any moneys standing to the credit of the Forestry Fund in any securities in which trustees are by law authorised to invest trust funds.

9. Any officer of the Commissioners or any other person authorised by them in that behalf, may on production, if so required, of his authority, enter on and survey any land for the purpose of ascertaining whether it is suitable for afforestation or for the purpose of inspecting any timber thereon, or for any other purpose in connexion with the exercise of the powers and performance of the duties of the Commissioners under this Act.

Power of entry
to inspect
land, &c.

10.—(1) Where an officer appointed to the office of Forestry Commissioner with a salary holds at the time of his appointment an office in the civil service which entitles him to superannuation under the Superannuation Acts, 1834 to 1914, he shall be entitled on his ultimate retirement from the public service to the same allowances as if he had continued to hold the vacated appointment at the same rate of salary as when the same was vacated, subject nevertheless to the conditions which would in that case have been applicable with respect to the grant of such allowances:

Pensions.

Provided that—

(a) it shall be lawful for the Treasury to grant such superannuation allowances to any such Forestry Commissioner on the expiration of his term of office without renewal of public employment; but any commissioner to whom such grant is made while under the age of sixty years shall be liable to be called upon to fill office under the Crown in the manner prescribed in section eleven of the Superannuation Act, 1859; and

22 Vict. c. 26.

(b) such part of any superannuation or other allowance or gratuity awarded by this section as the Treasury may determine shall be paid out of the Forestry Fund.

2. The Forestry Commission may, with the approval of the Treasury, make schemes providing for the grant of superannuation and other allowances and gratuities to or for the benefit of such officers employed by them as may be from time to time approved by the Treasury, and may out of the Forestry Fund pay to such officers on retirement, or to their legal representatives on death, such superannuation and other allowances and gratuities under the schemes as the Treasury may sanction in each case; and the Treasury may determine the Forestry Fund to be a public fund for the purposes of the Superannuation Act, 1892.

55 & 56 Vict.
c. 40.

Short title and
commence-
ment.

11.—(1) This Act may be cited as the Forestry Act, 1919.

(2) This Act shall come into operation on the first day of September, nineteen hundred and nineteen.

Section 7.

SCHEDULE.

(1) Where the Commissioners propose to purchase land compulsorily under this Act, they may submit to the Development Commissioners a draft order putting in force, as respects the lands specified in the order, the provisions of the Lands Clauses Acts with respect to the purchase and taking of land otherwise than by agreement.

(2) The order shall be in the prescribed form and shall contain such provisions as the Development Commissioners may prescribe for the purpose of carrying the order into effect, and shall incorporate the Lands Clauses Acts, except such of those provisions as relate to the sale of superfluous land, and sections seventy-seven to eighty-five of the Railways Clauses Consolidation Act, 1845, or, in Scotland, sections seventy to seventy-eight of the Railways Clauses Consolidation (Scotland) Act, 1845, and those Acts shall apply accordingly.

8 & 9 Vict.
c. 20.
8 & 9 Vict.
c. 3

(3) The draft order shall be published by the Commissioners in the prescribed manner, and such notice shall be given both in the locality in which the land proposed to be acquired is situate and to the owners, lessees, and occupiers of that land as may be prescribed, and in the case of land forming part of a common, open space, or allotment, also to the Board of Agriculture and Fisheries.

(4) An order authorising the acquisition of any buildings may, if portions only of those buildings are required for the purposes of the Commissioners, notwithstanding anything in the Lands Clauses Acts, require the owners of and other persons interested in those buildings to sell and convey to the Commissioners the portions only of the buildings so required, if the arbitrator is of opinion that such portions can be severed from the remainder of the properties without material detriment thereto, and, in such case, the Commissioners shall not be obliged to purchase the whole or any greater portion thereof, and shall pay for the portions acquired by them and make compensation for any damage sustained by the owners thereof or other parties interested therein by severance or otherwise.

(5) An order may provide for the continuance of any existing easement or the creation of any new easement over the land authorised to be acquired.

(6) Where the land is glebe land or other land belonging to an ecclesiastical benefice, the order shall provide that sums agreed upon or awarded for the purchase of the land or to be paid by way of compensation for the damage to be sustained by the owner by reason of severance or other injury affecting the land, shall not be paid as directed by the Lands Clauses Acts, but shall be paid to the Ecclesiastical Commissioners to be applied by them as money paid to them upon a sale under the provisions of the Ecclesiastical Leasing Acts of land belonging to a benefice.

The provisions of this paragraph shall not apply to Scotland or Ireland.

(7) In construing, for the purposes of this Schedule or any order made thereunder, any enactment incorporated with the order, this Act together with the order shall be deemed to be the special Act and the Commissioners shall be deemed to be the promoters of the undertaking, and the expression "land" shall include easements, in or relating to land.

(8) In this Schedule the expression "prescribed" means prescribed by the Development Commissioners, and in Scotland the expression "easements" means servitudes.

CHAPTER 59.

An Act to make further provision for the acquisition of land for the purposes of small holdings, reclamation, and drainage, to amend the enactments relating to small holdings and allotments, and otherwise to facilitate land settlement. [19th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

PROVISIONS AS TO THE ACQUISITION OF LAND.

1.—(1) Any order for the compulsory acquisition of land which is duly made after the date of the passing of this Act and before the expiration of three years from that date by a council under the Small Holdings and Allotments Act, 1908 (hereinafter referred to as the principal Act), need not, except as otherwise expressly provided by this Act, be submitted to or confirmed by the Board of Agriculture and Fisheries, but shall have effect as if it had been so confirmed :

Temporary suspension of requirements as to confirmation of orders for the acquisition of land.
8 Edw. 7. c. 36.

Provided that a grant or inclosure of common purporting to be made under any such order shall not be valid unless it is made with the consent of the Board, given under and in accordance with the provisions of section twenty-two of the Commons Act, 1899.

(2) Notice of the making of an order to which this section applies shall be given in the prescribed form and manner by the

62 & 63 Vict.
c. 30.